

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 08/28/26      TIME: 1:30 P.M.      DEPT: D      CASE NO: CV1700712

PRESIDING: HON. ANDREW E. SWEET

REPORTER:

CLERK:

PLAINTIFF:      JESSICA DURAN  
SABALVARRO

vs.

DEFENDANT:    VIBRA HEALTH CARE, ET  
AL

NATURE OF PROCEEDINGS:    MOTION- LEAVE

RULING

This matter is continued to September 30, 2026 @ 9am in Department D.

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 08/28/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CIV2202233

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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PLAINTIFF:      CHRISTOPHER MARKS

vs.

DEFENDANT:    DENALI WATER  
SOLUTIONS, LLC

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NATURE OF PROCEEDINGS: MOTION – COMPEL - DISCOVERY FACILITATOR  
PROGRAM

**RULING**

Plaintiff's Amended Motion to Compel Further Written Responses to Request for Production of Documents and to Compel Production of Documents is GRANTED.

The parties appeared in court on August 21, 2026, on Defendant's ex parte application for an order shortening time, which was denied. The parties advised the court that they were in the process of meeting and conferring on the outstanding discovery issues given that the case is set for trial on January 20, 2027. The court did not receive an update declaration and proceeds with this order understanding that the discovery dispute remains unresolved.

Plaintiff's Motion to Compel Plaintiff Christopher Marks' Compliance with Responses to Defendant Denali Water Solutions, LLC's Requests for Production of Documents (Set One) is GRANTED. Plaintiff's Requests for Production of Documents Set No. One seeks to compel responses and production of documents responsive to Requests No. 1-36, 44-72, 74-80 and 82-1511, Requests omitted from the motion are Nos. 37-43, 73 and 81. The motions to compel are GRANTED

Meet and confer efforts began in January 2026, with Defendant agreeing to supplement responses in February. Defendant served initial objections to all Plaintiff's Requests for Production of Documents and served no documents with its objections on December 5, 2025. After the parties met and conferred, Defendant served supplemental written responses to the Request for Production of Documents on February 16, 2026. The plaintiff found the responses to be inadequate and continued meet and confer efforts through April 2026, before bringing the motions.

The dispute did not resolve with the assistance of the discovery facilitator, who was appointed on July 14, 2026.

Code of Civ. Proc. §2031.220 provides that a party responding to a documents request must serve a statement that the responding party will comply with the particular demand and that all documents or things in the demanded category that are in the possession, custody, or control will be made and will be included in the production. Defendant advised the Plaintiff, in response to requests (1-36, 44-72, 74-80 and 82-151), that it would "produce relevant non-privileged responsive documents on a "rolling basis." This response is inadequate. Defendant is ordered to respond within 10 days of entry of this order, as to whether it is in possession of responsive documents for each request.

CCP §2031.280(a) requires identification of documents or category of documents that are produced in response to a demand for inspection, and those documents should identify the request for which they are responsive. Defendant shall provide an index to link the requests with the documents produced in August 2025.

CCP §2031.240(c)(1) provides that if an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log. Defendant has incorporated its privilege objections in the preface into its supplemental written responses to Requests 7-15, 17-18, 24-27, 46-50, 56-71, 74-80, 82 and 86-93. Defendant shall provide further written responses to the Requests and identify the specific ground for objection for any responsive document Defendant is withholding. The Defendant shall provide sufficient factual information regarding any privilege objection and provide a privilege log.

Supplemental responses to document requests 51 and 52 regarding vendors Roger Sissom and Patrick 8, and others who provided consultation services for documents that were "marked up" or "skimmed". The parties met and confirmed on this issue on March 2026, to clear the vagueness of these terms for the Defendant. Plaintiff complains that the issue has not been resolved even after there was agreement during the meet and confer. Defendant shall now supplement the responses based on the definition of these terms reached in March.

Plaintiff's request for fee sanctions is GRANTED pursuant to CCP §2031.31(h). The court has reviewed the declaration of Patricia Kramer and finds the request for fees and costs to be eminently reasonable. The fee award is \$11,500, and Defendant shall pay costs in the amount of \$90.45.

*Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.*

*IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.*

*FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).*

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 08/28/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0000712

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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PLAINTIFF:      EMELY SALDANA

vs.

DEFENDANT:    THE BUNGALOW  
KITCHEN SF, LLC ET AL

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NATURE OF PROCEEDINGS: 1) MOTION – FAILURE TO FILE FINAL APPROVAL OF  
CLASS ACTION AND PAGA SETTLEMENT  
2) MOTION – OTHER: FINAL APPROVAL OF CLASS ACTION AND PAGA  
SETTLEMENT

**RULING**

The class action and PAGA settlement is approved. The court will sign the order provided.

*Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.*

*IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.*

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**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 08/28/26      TIME: 1:30 P.M.      DEPT: L      CASE NO. CV0001240

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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PETITIONER:      SMITH & NEPHEW, INC.

vs.

RESPONDENT: MARIN ADVANCED  
WOUND CENTER PC

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NATURE OF PROCEEDINGS: MOTION – LEAVE – AMEND COMPLAINT

**RULING**

Plaintiff's Motion to Amend the Complaint was filed on June 29, 2026. Defendant filed a timely opposition on August 17, 2026.

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be appropriately numbered, here as the First Amendment Complaint. Rule of Court, Rule 3.1324(a)(1). The moving party must state the allegations to be added, and identify by page, paragraph and line number, and where additional allegations are located. Rule 3.1324(a)(3). The party must file a declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amendment were discovered, and the reasons why the requested amendment was not made earlier. Rule 3.1324(b).

Plaintiff has not filed a proposed amended complaint, nor was the motion supported by a declaration, as required. The motion to amend is DENIED without prejudice. Defendant should note that if the Plaintiff complies with the rules of court, the request will likely be GRANTED, given the scope of the proposed amendment is limited. The parties should meet and confer prior to any future refiling in an effort to achieve a stipulation.

*Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.*

*IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.*

*FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).*

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 08/28//26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0001441

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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|--------------------------------------------|--|
| PLAINTIFF:      EDNA MARCIA RIBEIRO        |  |
| vs.                                        |  |
| DEFENDANT:    ALEXANDRE P. FRADE,<br>ET AL |  |

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NATURE OF PROCEEDINGS: MOTION – NEW TRIAL

**RULING**

Defendant Alexandre P. Frade, D.D.S. ("Defendant") filed a Motion for a New Trial on July 20, 2026. pursuant to California Code of Civil Procedure ("CCP") §§ 657.

Defendant is a dentist. Plaintiff Edna Marcia Ribeiro ("Plaintiff") was his patient as defined by Business and Professions Code, § 1684.5(b). Plaintiff filed an opposition brief on July 27, 2026. Defendant filed a reply brief on July 30.

Given the facts presented to the jury during the trial regarding the doctor's unprofessional conduct with his patient, it is not surprising the jury found for the Plaintiff, awarding her \$400,000.00.

Wrenching testimony described a dentist who on the very day he extracted a tooth from his patient, whom he knew was a massage therapist, scheduled her as his last patient and emptied the office of employees so the two parties were alone. The oral surgery occurred during the evening of September 1, 2022. The dentist coordinated this so, after he performed oral surgery on her, she could give him a massage. The Defendant negotiated massages in exchange for payment for Plaintiffs oral surgery. Plaintiff credibly testified that after the surgery, the dentist sexually assaulted her by groping her in his reception area. Testimony also supports that he demanded the massage *immediately* after he performed the oral surgery, most likely while her mouth was bloody and she was numbed and medicated. Uncontroverted testimony told how the patient even had to negotiate with the dentist down from giving him a full body massage on a massage table that evening, to a head and neck massage. The facts regarding the dentist's untoward behavior were hard for the jury to digest.

Plaintiff testified that she maintained a relationship with the Defendant after the surgery after September 1, 2022, to stay in his good-graces with the hope of resolving the continuing pain associated with the botched tooth removal. Testimony at trial is uncontroverted in that the tooth extraction was botched, with part of her tooth remaining in the oral cavity. The jury reviewed extensive texts and voicemail records in which the Patient expressed concerns about continued pain in her mouth because of the Defendant's tooth extraction. The jury heard testimony that the Plaintiff believed the Defendant would continue to help her repair the painful damage he caused to her mouth.

It is undisputed that the Defendant told the Plaintiff that he had cancer, when he did not, in what the Plaintiff explained to the jury was a bizarre attempt for him to garner the Plaintiff's sympathy.

Defendant relented in the end, by agreeing to examine the Plaintiff nine (9) months later at his offices in June 2023. Logically, the doctor/patient relationship continued from September 2022, with the parties continuing to discuss the tooth issue in texts and voicemail messages, and with the dentist agreeing to once again examine his patient in June 2023. On the day of the examination and while at the Defendant's office, the Jury heard testimony that the Defendant changed his mind and refused to examine her. Plaintiff also testified that she had misgivings about this dentist performing any procedures on her mouth.

Given the facts presented to the jury, it is no wonder that they found in favor of the Plaintiff.

### **Jury Verdict History**

The jury trial on this matter commenced on May 26, 2026, and ended on June 23, 2026. The jury was impaneled for approximately 16 days. The jury entered a verdict in favor of Plaintiff on June 23, 2026, that the dentist made unwelcomed sexual advances on his patient while she was unable to easily end the relationship, causing her emotional distress. The jury also found that the dentist made sexual advances on the Plaintiff while they were engaged in a dentist/patient relationship. The jury also found that the dentist took advantage of the Plaintiff because she was a woman. Damages were awarded in her favor for negligence, sexual harassment, and violations of the Unruh Civil Rights Act awarding her \$100,000 for past non-economic damages, \$150,000 for future non-economic damages, and \$150,000 for civil rights violations.

The jury awarded \$400,000 in total damages.

### **Motion for New Trial - Standard**

CCP §657 sets out the grounds for a new trial: 1) Irregularity in the proceeding; 2) jury misconduct; **3) accident or surprise**; 4) newly discovered evidence which Plaintiffs could not, with reasonable diligence, have discovered and produced at trial; **5) excessive or inadequate damages**; **6) insufficiency of the evidence**; **7) an error in law which occurred at trial, to**

**which the party seeking a new trial objected.** Plaintiff seeks a new trial based on grounds 3, 5, 6 and 7.

**An affidavit to Support a CCP §657 claim is mandatory.**

The court may grant a new trial based on accident or surprise that the moving party could not have guarded against by exercising ordinary prudence. CCP §657(3). “Accident” or “surprise” as a ground for a new trial means a condition or situation in which a party to an action is placed unexpectedly to the party's detriment. (*McCoy v Pacific Maritime Ass’n*. (2013) 216 Cal.App.4th 283, 305.)

CCP §657 provides:

A new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, nor upon the ground of excessive or inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that *the court or jury clearly should have reached a different verdict or decision*. (Emphasis, the court.)

If one moves for new trial on CCP §657 on ground #3 for accident or surprise or 4, the party must support the claim with affidavits; otherwise one must move upon “on the minutes of the court.” CCP §658.

“Motions seeking a new trial on the first four grounds “must be made upon affidavits” (§ 658).” (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1192.)

Defendant did not provide a declaration substantiating his claim that Dr. Pappas’ testimony regarding the duration of the dentist-patient relationship constituted a surprise which ordinary prudence could not have guarded against. Aside from the arguments in the moving papers. Defendant does not specifically cite the record to identify where Dr. Pappas stated that the dental relationship is a “mandatory ‘two year duration’”, as alleged in the Motion at Page 1:26.

Defendant’s failure to submit a supporting declaration supports denial of the motion for new trial on the basis of surprise testimony.

Surprise under § 657(3) arises when an adverse witness testifies to material facts or positions completely at variance with prior disclosures, effectively blindsiding the opposing party and depriving them of a fair opportunity to prepare a defense. In *Whitfield v. Debrincat*, the court affirmed a new trial where the defendant's own witness had given testimony about a fact that was wholly contrary to what the witness had indicated prior to trial, finding that neither ordinary nor extraordinary prudence could have guarded against the about faced change of position by the witness without warning. (*Whitfield v. Debrincat*, (1937) 18 Cal.App.2d 730.) Similarly, in *Wade v. De Bernardi*, the trial court granted a new trial where an expert witness indicated moments before testifying to certain facts, but then completely reversing his opinion on the stand. (*Wade v. De Bernardi*, (1970) 4 Cal.App.3d 967.) The new facts presented in *Whitfield* and *Wade* were surprising facts that put the trial lawyers on their heels. A statement by a Plaintiff expert dentist that the dentist-patient relationship lasts two years is not a blindsiding

surprise the would cause the jury to reach a different verdict. Particularly, when the jury received a jury instruction defining the scope of the dentist/patient relationship. *Infra*.

Defendant Plaintiff's dental expert, John Pappas, DDS, MD, JD, testified that a dentist-patient relationship under the California Dental Practice Act exist for a two year duration constituted a fatal surprise. Defendant appears to argue that the doctor patient relationship expired after the first medical procedure on September 1, 2022, claiming that the relationship after was "a purely personal consensual relationship." (Motion at 2:10-11.) The volume of evidence before the jury does not support that assertion. There were numerous ongoing text and voicemail messages between the parties after the oral surgery which addressed the Plaintiff's dental distress. At one point in December 2022, in an apparent attempt to derail the Plaintiff from seeking additional dental or legal advice, and an obvious effort to garner her sympathy, the Dentist told Plaintiff that he had cancer. On cross examination, Defendant showed no remorse for attempting to elicit her sympathy by deceiving her about the cancer diagnosis.

There was a follow-up dental appointment in June 2023 to the September 1, 2022, tooth extraction at the dentist's office. It would have been helpful for the Defendant to cite the testimony in transcript to support the argument of "surprise". Dr. Pappas testified Plaintiff remained the Defendant's patient until the post operative appointment on June 28, 2023. "Ms. Ribeiro was a patient of record of the defendant from the time he treated her until the time of post-op appointments. ... In the interim between 9-1-22, Dr. Frade maintained some sort of connection on phone, and giving the patient advice and recommendations about treatment. So she is a patient of record of Dr. Frade's." (Day 6, pg. 87:2-88:6.).

Dr. Pappas testified that his expert opinion was that a patient of record remains a patient once he as seen and examines a patient and takes her dental history then the person becomes a patient of record by law in the State of California. (Day 6, pg. 86:15-19.) Bus. & Prof. Code, § 1684.5(b).

Defendant wants it both ways. Defendant complaints that Dr. Pappas, as plaintiff's expert may not testify to legal conclusions or interpret statutory legal frameworks. Yet, on June 11, 2026, in response to that testimony, defense expert Dr. Finzen, DDS, testified that he reviewed the Civil Code and found that the Defendant's conduct did not fall below the standard of care between a doctor and his patient. Both experts are not lawyers, yet they espoused legal opinions which they linked to legal citations. Here, the sexual relationship between the dentist and the Plaintiff began on the date of the tooth extraction, when he demanded a massage after, and sexually assaulted her by groping her body in his office. Defendant does not protest when his defense expert, a dentist, uses the authority of the Civil Code to argue that that conduct did not fall below the standard of care; yet he objects to Dr. Pappas making a vague reference to the Business and Professions code while giving an expert opinion.

Moreover, the argument of surprise (§657 sub. C) and/or error of law (§657 subs. 6, 7) is unsupported by the record because Defendant was on notice that the duration of the dentist-patient relationship was a point of contention.

First, Defendant asserts that Dr. Pappas was not disclosed to testify regarding the duration of the doctor patient relationship, and the failure to disclose "forced" the Defendant to elicit testimony from Defendant's own experts. Yet, Defendant was advised that Dr. Pappas intended to testify

at his deposition that Plaintiff was scheduled for a check up visit after the September 1, 2022, dental extraction.

Second, Defendant's expert Dr. Finzen's deposition testimony before trial was that the doctor patient relationship ended after the September 1 tooth extraction. This discloser put the parties on notice that the scope of the doctor patient relationship was at issue. (Plaintiff's Opposition, citing Finzen Depo. 9:17-20.) There was no surprise here. Defense aptly introduced expert testimony from both Dr. Finzen and Dr. Crane who were both well versed and comfortable addressing when a dentist/patient relationship begins and ends. The plaintiff has the prerogative to address points of contention during their presentation of the case.

Lastly, Defendant changes his argument in the Reply brief, arguing that the Defendant does not seek a new trial under the theory of procedural "surprise". Reply at 1:26-28. This statement is inconsistent with the first two pages of Plaintiff's motion. Motion 1:16-2:28.

### **Jury Award was Reasonable.**

A judge may grant a new trial based on excessive or inadequate damages under CCP §657 sub. 5, only if, after weighing the evidence, the judge is convinced from the entire record the jury clearly should have reached a different verdict or decision. (CCP §657. *Neal v Farmers Insu.* (1978) 21 Cal. 3d 940, 930. A judge Ruling on a motion for new trial on the ground of excessive or inadequate damages must weigh the evidence and act as an independent trier of fact. (*Ryan v Crown Castle*, (2016) 6 Cal.App.5th 775, 784.) The judge may disbelieve witnesses and draw reasonable inferences contrary to those drawn by the jury rejecting any testimony that the judge concludes is false from the evidence. (*Baker v American Horticultre Supply* (2010) 186 Cal.App.4th 1059, 1067.)

Defendant's argument is far-reaching. There was ample evidence to support a six figure jury damages award. Testimony described a dentist who, on the same day he extracted a tooth from a patient, cleared his office of employees in the evening so he could receive a full body massage from the very same patient he performed oral surgery on. Evidence supports Plaintiff's allegations that he sexually assaulted her. He even demanded that his patient, after he removed her tooth and while she was numb and medicated, give him a massage. Likely with post operative blood in her mouth, she had to negotiate with him to lessen the scope of the massage from a full body to a head and neck massage, which she gave. Credible testimony indicates that the dentist altered his medical records in an effort to show he terminated the dentist patient relationship. Further, it is undisputed that he told her he had cancer, when he did not. The text message chain supports his efforts to exploit his patient for massages, all the while, she was in pain and had to seek dental attention from other costly dental providers.

Dr. Nathalia Guimaraes, a Brazilian medical professional, was qualified to testify as an expert regarding the Plaintiff's post operative anxiety and mental health. This court has no basis to join the Defendant in his attack on the doctor's professionalism and qualifications. Dr. Guimaraes testified as a qualified expert regarding the severe emotional distress Plaintiff suffered because of Defendant's sexual mistreatment. She discussed Plaintiff's severe anxiety, insomnia and the shame she suffered. This testimony supports the jury award for emotion distress damages.

Defendant points to no examples in the trial record to support his claim that “a rigorous examination of the total record reveals a total failure of proof regarding medical causation and the existence of any documented related emotional injury.” Motion at 3:16-18. There are no facts which would support overturning the jury’s determination under CCP 657 sub. 5, that the dentist was negligent, he sexually harassed her and violated her civil rights because she is a woman.

**Jury Instruction Regarding the Law were Proper.**

A judge may grant a new trial based on misstatements of the law under CCP §657 sub. 7.

Defendant’s argument that Plaintiff’s expert Dr. Pappas’ statement that the relationship lasted for 2 years was a misstatement of fact and law is addressed, *supra*.

Defendant’s assertion that “[t]he undisputed evidence at trial established that Defendant Dr. Frade treated Plaintiff Edna Ribeiro for a single, problem-focused visit on September 1, 2022. No follow-up appointments were scheduled or requested,” is patently false and a gross misstatement of the record. The evidence shows the tooth extraction was an ongoing topic of conversation between the Plaintiff and Defendant, even during their “relationship,” which ended several months after the oral surgery. There are numerous text messages and voice messages shared between the parties in which Plaintiff discussed her dental situation and the pain she suffered. These were not just messages relayed between two adults in a “relationship”, these were messages sent by a patient whose tooth removal was botched by her dentist when he failed to extract the entire tooth.

Further, the Defendant agreed to meet with the Plaintiff for an appointment at his dental office space on June 28, 2023, to examine and repair the same area of the Plaintiff’s mouth in which he performed oral surgery on September 1, 2022. Dr. Pappas testified that Plaintiff remained his patient until his post-operative appointment on June 28, 2023. (Day 6, pg. 87:2-88:6.) This was a follow-up appointment and the dentist agreed to reexamine the Plaintiff to repair the damage he caused.

Jury instruction BAJI 6.05 was read to the jury and defines the scope of the dentist-patient relationship. The jury heard the following instruction:

Once a dentist has undertaken to treat a patient, the employment and duty as a dentist to the patient continues until ended by consent or request of the patient or the dentist withdraws from the case after giving the patient notice and a reasonable time to employ another dentist or the condition of the patient is such that the dentist’s services are no longer reasonably required.

A dentist may limit his obligation to a patient by undertaking to treat the patient only for a certain ailment or injury. If the employment is so limited, the physician is not required to treat the patient for any other ailment or injury.

Defendant attempted to introduce a medical record in which the Defendant notes for his file that he advised the Plaintiff that the dentist-patient relationship was complete. The Plaintiff presented credible testimony that the purported self-serving medical record was doctored. The jury weighed the evidence, and found the doctor-patient relationship continued beyond September 1, 2022.

The court is troubled by Defendant's assertion in its reply the "the Court allowed Dr. Pappas to redefine BAJI 6.05"; that did not happen.<sup>1</sup> To address the issue once raised by the Defendant, the court made a clarifying instruction to the jury after Defendant's motion to strike was DENIED on June 8, 2026, that the jurors were to follow the law regarding the scope of the relationship when they were presented with jury instructions. Also, the jurors were instructed to follow BAJI 6.05, and that "[y]ou must follow the law exactly as I give it to you, even if you disagree with it. If the attorneys [have said/say] anything different about what the law means, you must follow what I say." CACI 5000.

On this record, sufficient evidence was presented to justify the jury verdict. A CCP §657 sub. 6 finding is unsupported by the record. Moreover, there was no error in law because the jury was correctly instructed regarding the duration of the dentist-patient relationship. CCP §657 sub. 7.

### **Doctors Living Outside of the United States May Testify as Experts in California**

Defendant's Motions in Limine No. 8 and 14, sought to preclude Plaintiff from calling doctors licensed in Brazil from testifying in a California courtroom. The motions also sought to preclude reference of medical and dental records from foreign providers. Defendant challenges the qualifications and testimony of Dentist Rodrigo Costa, who practices dentistry in Brazil, and Dr. Nathalia Guimaraes.

California Evidence Code § 720(a) provides that a person is qualified to testify as an expert if s/he has special knowledge, skill, experience, training, or education sufficient to qualify him/her as an expert on the subject to which his testimony relates. (Cal. Evid. Code §720.) The statute does not impose any requirement that the expert be licensed in California, in the United States, or even reside domestically.

In *Avivi v. Centro Medico Urgente Med. Ctr.*, the court found that an orthopedist who lived and practiced in Israel was sufficiently qualified to provide an opinion about the standard of care in California for the treatment of an arm fracture, despite never being board certified by any United States medical board nor providing any treatment to patients in the United States. (*Avivi v. Centro Medico Urgente Medical Center*, (2008) 159 Cal.App.4th 463, 468-470.) The court reasoned that the appropriate test for expert qualification in ordinary medical malpractice actions is whether the expert is familiar with circumstances like those of the respondents, and that familiarity with the standard of care in the particular community where the alleged malpractice

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<sup>1</sup> The Defendant also references "Fabricated Legal Opinions" contained in the testimony of Plaintiff's expert Dr. Pappas. However, only **one** issue is identified in the papers. Motion at 6:8.

occurred is generally not requisite. (Id.) The court may also consider the use of modern technology when considering to allow a foreign doctor to testify. (Id.)

The medical professionals living in Brazil were properly sworn before they were allowed to provide testimony. An out of state witness testifying remotely is subject to a perjury charge under California law. Perjury is defined in Pen. Code, § 118 as knowingly providing false testimony under oath. Pen. Code, § 118 further provides: “This subdivision is applicable whether the statement, or the testimony, declaration, deposition, or certification is made or subscribed **within or without the State of California.**” Pen. Code, § 27(b) provides: “Perjury, in violation of Section 118, is punishable also when committed outside of California to the extent provided in Section 118.” (Emphasis added). The California Supreme Court confirmed that the Legislature specifically sought to enhance the trustworthiness of out-of-state declarations used in California proceedings by maximizing the declarant's specific understanding that his false promises to tell the truth carried the potential for criminal prosecution in California. (See, *Kulshrestha v. First Union Commercial Corp.*, (2004) 33 Cal.4th 601, 611, requiring a declarant to sign under penalty of perjury under the laws of the State of California, CCP §21015.5).

This argument by the Defendant is troubling and not in any way supported by the caselaw cited. As a practical matter, witnesses are sworn and provide testimony from outside state lines every day.

Finally, the court recognizes that there are talented medical professionals who reside all over the planet, including in Brazil. Dentist Rodrigo Costa testified regarding his education and qualifications, which were outstanding. The court has no reason to question if he is any less skilled than a dentist licensed in California.

The court found that the evidence he presented and documents he used to support his testimony were credible and allowed those documents to be admitted after the proper foundation was established. There was no legal error to support a CCP §657 sub. 7 finding by the court allowing persons living outside of the State of California, or the United States to testify as an expert in a California courtroom.

### **Negligence *Per Se*, B&P §726.**

The court has addressed the ample evidence was presented before the jury to address Defendant's argument that the dentist-patient relationship between the Defendant and his patient extended well beyond September 1, 2022. Defendant's continued argument that the clinical relationship terminated completely following a single procedure is not true just because the Defendant says it is true. The court did not ‘misdirect’ the jury as accused by the Defendant. (Motion 11:10-16.) The jury was provided with the appropriate jury instructions. *Supra*.

Business and Professions Code, § 726 protects vulnerable patients like Plaintiff from the emotional harm that would likely to result from sexual exploitation by their dentist or doctor. “We believe this result comports with the Legislature's intent to protect vulnerable patients from overreaching by their physicians.” (*Roy v. Superior Court* (2011) 198 Cal.App.4th 1337, 1353.) “Patients' vulnerability compounded with their obvious dependence on the physician to ‘cure

their ills’ places the physician in a position of dominance. It is this position of dominance, or relative disparity of power in the relationship, which has led the American Medical Association ... to conclude that having sexual relations with a current patient is unethical.” *Id.* This statute was enacted by Legislature to establish duties and standards of care to protect vulnerable patients, like the Plaintiff, from sexual predation by their dentist, which the jury concluded happened in this case.

Like B&P §726, which sets a standard of care, “...the common law doctrine of negligence *per se*, B&P § 729 may be used to establish duties and standards of care in a negligence action.” (*Applied Materials v. Workers’ Comp. Appeals Bd.* (2021) 64 Cal.App.5th 1042, 1076.) In that case, the court held that Bus. & Prof. Code, § 729, would support a negligence *per se* instruction in a case involving emotional distress damages resulting from a physician’s sexual relations with a patient. The facts in that case are directly applicable to this case. In *Applied*, a worker claimed that she was sexually exploited by the physician primarily responsible for the treatment of her industrial injuries. She claimed that he touched her inappropriately on multiple occasions at his clinic and had sexual intercourse with her five times in her home. As a result of the doctor’s alleged misconduct, the worker claimed that she suffered a further injury to her psyche and was diagnosed with posttraumatic stress disorder (PTSD). The worker claimed her PTSD was industrial as a compensable consequence of the medical treatment her employer provided for her injuries. *Id.* at 1051.

Similarly in this case, the Plaintiff complained she was groped and made to give the Defendant a “massage” on the same evening her tooth was extracted, at his empty dental office. He demanded additional “massages” for compensation for the oral surgery after the operation, with several visits at her home where he collected on his promised full body massages, which led to further intimacy. He ignored her texted concerns and conversations about the pain she endured because of his botched tooth removal. The case law provides that the Defendant owed her a duty of care, which he ignored. The jury appropriately found she suffered emotional express damages due to the dentist’s conduct.

The court’s instruction regarding B&P§726 was properly given to the jury who were also instructed on the law regarding the duration of the dentist-patient relationship with jury instruction BAJI 6.05.

On this record, sufficient evidence was presented to justify the jury verdict. There is no support for a new trial pursuant to CCP §657 sub. 6. Moreover, there was no error in law because the jury was correctly provided with the negligence *per se* jury instruction. CCP §657 sub. 7.

### **Defendant was Negligent for Making Sexual Advances on His Patient.**

Defendant cites *Atienza v. Taub* to argue that “sexual advances” are intentional actions. (*Atienza v. Taub* (1987) 194 Cal.App.3d 388, 393). Unfortunately, Defendant fails to disclose that *Atienza v. Taub*, was expressly distinguished in *Applied*, with the ruling issued before B&P §729 was amended; that amendment provides that Plaintiff “consent” to a sexual contact by a doctor is not a defense:

...certain health care providers, including physicians, who engage in “sexual intercourse ... or sexual contact with a patient” are guilty of the criminal offense of “[s]exual exploitation,” which is punishable as a misdemeanor or a felony depending on the number of acts or victims. (Bus. & Prof. Code, § 729, subs. (a) & (b).). ***The patient’s consent is not a defense.*** (Id., subd. (b).). (Emphasis, the court.)

The question in Special Verdict Form 1603 to which the Defendant finds objectionable states: “Was Alexandre Frada negligent in making sexual advances on Ms. Ribiero while she was a patient?” The jury, after weighing the evidence found that it was, despite the Defendants aggressive attempts to make the “relationship” seem consensual. Ample evidence supports the verdict.

After weighing the evidence, the jury correctly determined the Defendant caused the Plaintiff emotional distress, and correctly awarded her damages.

## Conclusion

A new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, nor upon the ground of excessive or inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that *the court or jury clearly should have reached a different verdict or decision.* CCP §657. (Emphasis, the court)

There was no miscarriage of justice here. The jury found in favor of the Plaintiff after carefully weighing substantial evidence of the Defendant’s misconduct. The jury was properly instructed regarding the durational scope of the dentist-patient relationship. The jury correctly found that the Defendant’s conduct fell below the standard of care, resulting in his negligent conduct.

The Motion for a New Trial is DENIED.

*Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.*

*IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.*

*FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).*

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 08/28/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0002987

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF:    B.B.

vs.

DEFENDANT: COUNTY OF MARIN

NATURE OF PROCEEDINGS: MOTION – ATTORNEY’S FEES

**RULING**

Petitioner B.B. (“Petitioner”) seeks an award of attorney fees and costs following the overturning of an administrative decision by Respondent, County of Marin (“County”). On January 5, 2026, the court, Hon. Andrew Sweet presiding, ordered the County to 1) change the substantiated finding litigated in this matter to a finding of inconclusive, and 2) contact the California Department of Justice and have Petitioner’s name removed from the Child Abuse Central Index (“CACI”).

Petitioner disputed the listing of his name on the CACI via an administrative hearing. Petitioner appealed the administrative decision of the County of Marin (Respondent) via a Petition for Writ of Administrative Mandamus. After hearing on the matter, the court determined the Respondent (County) abused its discretion in this case. The court found that the weight of the evidence before the administrative agency did not support the administrative officer’s finding that it was “more likely than not that child abuse..., as defined in the Penal code Section 11165.6 occurred.” (Penal Code § 11164.12, subd. (b) [defining “substantiated”].)

**Attorneys’ Fees**

Fees are available to the Petitioner pursuant several statutes.

**Fee Standards**

Fees are available pursuant to Government Code § 800 for prevailing in an administrative action where there is a finding of arbitrary or capricious action or conduct of a public entity or its officers, and the complainant prevails in the action. “Arbitrary and capricious conduct includes conduct not supported by a fair or substantial reason, a stubborn insistence on following unauthorized conduct, or a bad faith legal dispute. Whether conduct was arbitrary and capricious is a question of fact within the sound discretion of the trial court.” (*Zuehlsdorf v. Simi Valley*

*Unified School District*, (2007) 148 Cal.4th 249.) Under the “arbitrary or capricious” standard, attorney fees may not be awarded simply because the administrative action was erroneous, even if the action was “clearly erroneous” or overturned on appeal. (*Stirling v. Agricultural Labor Relations Board* (1987) 189 Cal.App.3d 1305, 1312.) “The trial court’s ruling that certain findings and determinations were not supported by the record does not, in itself, constitute evidence of arbitrary and capricious conduct.” (*Byrnes v. Riles* (1984) 157 Cal.App.3d 1170, 1182.)

The order issued by Judge Sweet on December 23, 2025, goes into great detail to describe the court’s dissatisfaction with the investigation conducted by the County Dept. of Children and Family Services (“CFS”). Ms. Melanie Lopez worked as a social worker for the County. The judge concluded that the County did not have sufficient facts to support a finding that Mother of the Child at issue did not coach the daughter about the alleged abuse determined by the County to be true. The finding of the County against the Petitioner was arbitrary and capricious in that it was based on an incomplete investigation. Accordingly, an award of fees pursuant to Gov. Code §800 is granted.

Petitioner also seeks an award of fees pursuant to Code of Civil Procedure § 1021.5; California’s “Private Attorney General” statute. CCP §1021.5 requires the prevailing party to show that the action:

- (1) served to vindicate an important public right;
- (2) conferred a significant benefit on the general public or a large class of persons; and,
- (3) imposed a financial burden on plaintiffs which was out of proportion to their individual stake in the matter.

(*Baggett v. Gates*, (1982) 32 Cal.3d 128, 142; Code Civ. Proc., § 1021.5.)

Petitioner’s Writ has served to accomplish an important public right. It is crucial in child abuse investigation cases that possibly involve parental alienation and coaching of children be conducted as thoroughly as possible given the resources available to either law enforcement or CFS, while also providing a gentle hand with the child. “[T]he significant-benefit requirement calls for an examination whether the litigation has had a beneficial impact on the public as a whole”. *McCormick v. Public Employees’ Retirement System*, (2023) 90 Cal.App.5th 996, 1004 (citations and quotation marks omitted). “[H]ow many people will receive what kind of benefit, and how much, as a result of a given legal action is usually more of a value judgment than an issue of fact.” *Id.* at 1005. It is important that investigators are properly trained, and an award of reasonable attorneys’ for an investigation gone awry may motivate better training of social workers. The benefit of the County by providing adequate trainings that include parental alienation, for example, in investigations will serve the public better in the future.

As for the last prong, it is certainly true that a CACI listing could result in loss of employment, disqualification from professional licenses, and severe reputational injury. While these factors may impact the financial interest of the litigant, there can be no cost associated that this court can imagine more damming than law enforcement or the court’s interfering with a parent’s ability to see his child, by branding that parent unjustly as a sexual predator. This lawsuit vindicated his name and has put the County on notice that better training of their employees may be warranted.

## **Lodestar**

The court will scrutinize the reasonableness of the fee petition under the “lodestar” method by determining the lodestar, which consists of the number of hours reasonably spent by the reasonable hourly rates for that work on a non-contingency basis. The lodestar method requires the trial court to determine a lodestar figure based on careful examination of reasonable hourly compensation of each attorney and consideration of the time spent to perform each task. (*Vo v. Las Virgenes Water District*, (2000) 79 Cal.App.4th 440, 445-446.)

### **1. Reasonable Rate.**

Plaintiff’s counsel Tate Lounsbery, Esq. was licensed in 2005. He seeks compensable fees for himself as the founding partner of his law firm, which focuses on CACI grievance matters, family law, and criminal defense. He has litigated approximately 50 writ proceedings related to CACI hearings, in multiple California counties. He estimates that he has litigated more CACI-related writs on behalf of individuals than any other attorney in California. He also serves as a lobbyist on behalf of the American Civil Liberties Union on CACI matters.

He request a reasonable recoverable hourly rate of \$750.00 and \$200.00 per hour for paralegals Christine Vanyo and \$150.00 for Stephanie Mazariego.

The lodestar method requires the trial court to determine a lodestar figure based on careful examination of reasonable hourly compensation of each attorney and consideration of the time spent to perform each task. (*Vo*, 79 Cal.App.4th 445-446.). “The experienced trial judge is the best judge of the value of professional services rendered in his court.” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095, citing *Serrano v. Priest (Serrano III)* (1977) 20. Cal.3d 25, 49.)

There is no objection to the specific hourly rate made by the County.

The court has reviewed the declaration submitted by counsel and finds the hourly rate requested of \$750.00 per hour to be eminently reasonable, and well in line with the reasonable compensable rates charged by Marin County attorneys with similar experience. The rates charged by his staff are also determined to be reasonable.

### **2. Hours Worked.**

A party who seeks attorney’s fees has the initial burden of “documenting the appropriate hours expended.” (*ComputerXpress Inc. v. Jackson*, (2001) Cal.App.4th 993, 1020.) Once a documented hour total has been submitted, the opposing party may make objections to the hours claimed. General objections that work is “excessive” or “unreasonable” are insufficient. The objections should be specific. (*Premier Med. Mgmt. v California Ins. Guarantee Ass’n*, (2008) 163 Cal.App. 4th 550, 563.)

The basis for calculating the lodestar “must be the actual hours counsel devoted to the case, less those resulting from ineffective or duplicative use of time.” (*Horsford v. Board of Trustees of Cal. State*, (2005) 132 Cal.App. 4th 359, 395.) The court also recognizes these billing records of

counsel constitute “verified time statements of the attorneys, as officers of the court, and are entitled to credence in the absence of a clear indication that the records are erroneous.” *Id.* at 394.

Unfortunately, Petitioner does not specifically itemize the total hours committed to this case by attorney time and paralegal time. The court has reviewed the “detailed report” submitted by the Petitioner and attached to the attorney declaration. The report was generated by “Clockify” and appears to be contemporaneously created.

Here too, the County does not specifically object to the hours worked by Petitioner’s counsel.

California courts have consistently held that verified time statements from attorneys carry a presumption of accuracy when submitted in support of fee requests. In *Horsford*, the court articulated the standard that attorney billing records are presumed credible unless there is “a clear indication the records are erroneous.” This principle has been repeatedly affirmed. In the *City of Colton v. Singletary*, the court applied this exact standard, holding that “the verified time statements of (an) attorney ( ), as (an) officer( ) of the court, are entitled to credence in the absence of a clear indication the records are erroneous”. ([City of Colton v. Singletary, \(2012\) 206 Cal.App.4th 751.](#))

Mr. Lounsbery submitted detailed contemporaneously created billing statements that were attached to his declaration filed on April 14, 2026, as Exhibit 1, requesting compensable time.

Petitioner’s request for recovery of reasonable attorney’s fees pursuant to Gov’t Code §800 in the amount of \$7,500 is GRANTED.

Petitioner’s request for recovery of reasonable attorney’s fees pursuant to CCP §1021.5 in the amount of \$18,008 (\$7,500 - \$25,508) is also GRANTED.

Mr. Lounsbery states in his moving papers that he has committed “approximately” 32 hours to this case. The total hours, however, are not discussed in his declaration, which was signed under penalty of perjury. Despite this omission, the court has no basis to believe that the hours stated in the moving papers are inaccurate. Counsel should be prepared to provide the court with an itemized breakdown of the hours worked so the court will have the information to complete the lodestar formula of => exact hours worked x \$750 reasonable rate = \$25,508.13 as requested reasonable fee.

### **Costs**

Petitioner’s request for a cost award pursuant to Gov’t Code §800 for filings and litigation costs associated writ proceeding is \$1,655.92. The request includes court filing fees and efileing service charges from the provider One Legal (\$871.49), postage fees (\$21.43) and the cost of the preparing the transcript of the administrative hearing (\$763). The request is GRANTED.

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**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 08/28/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0004916

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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PLAINTIFF:      ALISSA MADDEN

vs.

DEFENDANT: DARREN LITTLE, ET AL

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NATURE OF PROCEEDINGS: 1) DEMURRER  
2) MOTION - STRIKE

**RULING**

The demurrer of defendants Darren Little (“Little”) and Booth & Little (“B&L”) is sustained with leave to amend as to the fourth cause of action only. The demurrer is overruled as to the remaining counts. The motion to strike is moot.

**Background**

Plaintiffs Alissa Madden (“Madden”) and Alissa Madden, Inc. (“Madden, Inc.”) claim injuries and damages resulting from improper roofing installation by Little and B&L and improper mold remediation by defendant West Coast Water & Fire Restoration, Inc. (“West Coast”).

Plaintiffs commenced this action on December 27, 2024. The complaint includes the following causes of action: (1) negligence (Little and B&L); (2) negligence (West Coast); (3) negligent infliction of emotional distress (all defendants); and (4) fraudulent misrepresentation (all defendants).

At present, Little and B&L (collectively “Defendants”) demur to the causes of action directed against them and move to strike Plaintiffs’ claim for punitive damages.

According to the complaint, Madden leased a home in Kentfield from Stacy Stevenson beginning on September 15, 2020, and ending on July 20, 2023. Madden operated her interior design business Madden, Inc. within the premises. (¶1.) Prior to Madden leasing the premises, Stevenson hired Little and B&L to install a new roof on the home. The work was performed in April of 2019. (¶2.) Little and B&L purchased and installed the wrong type and/or wrong size of shingles for the pitch of the roof, which created a condition in which the roof was unable to properly repel water during rain events. (¶8.) When the rainy season began, substantial amounts of water entered the home, damaging Madden’s personal possessions and exposing her to

conditions hazardous to her health. (¶9.) Madden complained to Stevenson, who notified Little that he and B&L needed to replace the roof. (¶10.) Initially, Little and B&L attempted to avoid replacing the roof by sending employees to patch numerous locations and raising spurious objections. They ultimately agreed to file an insurance claim, replace the roof, and assume the costs of mold remediation but only following Madden’s acute reaction and suspicious of mold in late March 2023. (¶11.) Little and B&L hired West Coast to perform the mold remediation services in May 2023. (¶13.) Subsequent testing of the home and Madden’s personal belongings showed the remediation to be inadequate and deficient. (¶17.)

## Legal Standard

“... A general demurrer will lie where the complaint ‘has included allegations that *clearly* disclose some defense or bar to recovery.’” A demurrer can be used only to challenge defects that appear on the face of the complaint or from matters outside the pleading that are judicially noticeable. ‘To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action.’ The demurrer admits the truth of all material facts properly pleaded, including all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law.” (*Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.* (2024) 102 Cal.App.5<sup>th</sup> 281, 288-289, citations omitted.)

## Demurrer

### First Cause of Action – Negligence

Defendants argue that the cause of action is barred by the statute of limitations.

The statute of limitations for negligence is two years. (Code Civ. Proc., § 335.1.) Defendants point to Plaintiffs’ allegation that the condition became apparent in early 2021. This is when “substantial amounts of water entered the home through the improperly installed roof, damaging Plaintiff’s personal possessions and exposing Plaintiff to conditions hazardous to her health.” (¶9.)

As Defendants acknowledge in their reply, Plaintiffs allege that “water continued to leak into the home, further damaging Plaintiff’s personal property” because of Defendants’ “subsequent negligent and ineffective repair work.” (¶13.) Defendants argue that this claim are “likely...time-barred as well,” and they point out that Plaintiffs do not specify a time frame for the repairs. However, “[i]f the dates establishing the running of the statute of limitations do not clearly appear in the complaint, there is no ground for general demurrer. The proper remedy ‘is to ascertain the factual basis of the contention through discovery and, if necessary, file a motion for summary judgment...’” (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4<sup>th</sup> 316, 324-325, citing *United Western Medical Centers v. Superior Court* (1996) 42 Cal.App.4<sup>th</sup> 500, 505.)

The Court cannot tell from the face of the complaint that Plaintiffs did not suffer some property damage resulting from the inadequate repairs within two years prior to their filing of the complaint on December 27, 2024.

Even if all of Plaintiffs' personal property claims are barred, Madden has a separate cause of action for personal injuries. "Where a tortfeasor's single act causes the plaintiff to suffer both personal injury and property damage, there are two causes of action. ..." (*Allstate Ins. Co. v. Mel Rapton, Inc.* (2000) 77 Cal.App.4<sup>th</sup> 901, 909; see also *Hodge v. Kirkpatrick Development, Inc.* (2005) 130 Cal.App.4<sup>th</sup> 540, 551 ["two causes of action arise when a single tortious act causes the plaintiff to suffer both personal injury and property damage"].) Plaintiffs contend the delayed discovery rule applies and point to their allegations in paragraph 36. The Court of Appeal explained in *Kernan v. Regents of University of California* (2022) 83 Cal.App.5<sup>th</sup> 675, 681:

The discovery rule "sets forth two alternate tests for triggering the limitations period: (1) a subjective test requiring actual suspicion by the plaintiff that the injury was caused by wrongdoing; and (2) an objective test showing that a reasonable person would have suspected the injury was caused by wrongdoing. The first to occur under these two tests begins to run the limitations period."

(Citation omitted.) "Application of the delayed discovery rule is typically a question of fact. 'As our high court has observed, "there are no hard and fast rules for determining what facts or circumstances will compel inquiry by the injured party and render him chargeable with knowledge. It is a question for the trier of fact." "However, whenever reasonable minds can draw only one conclusion from the evidence, the question becomes one of law."'" (*Medina v. St. George Auto Sales, Inc.* (2024) 103 Cal.App.5<sup>th</sup> 1194, 1204, citations and brackets omitted.) Defendants do not address the delayed discovery allegations/argument, arguing in reply only that the statute began to run as to all claims in early 2021.

Since Madden did not begin to have symptoms until March 2022, Defendants' argument does not address this separate cause of action. Overruled.

### **Third Cause of Action – Negligent Infliction of Emotional Distress**

*Statute of Limitations:* Defendants argue that the cause of action is barred by the statute of limitations, making the same argument as they did to the first cause of action. The argument fails for the same reasons as discussed above.

*Failure to State a Cause of Action:* As to Madden, Defendants argue that "[n]o facts are alleged to support plaintiffs' legal assertion of a duty, a breach or causation under the facts alleged." Defendants have not challenged the negligence cause of action which has the same elements. The allegations of that cause of action are incorporated into this cause of action.

As to Madden, Inc., the demurrer is moot since Plaintiffs filed a request for dismissal of this cause of action as to Madden, Inc.

### **Fourth Cause of Action – Fraudulent Misrepresentation**

*Statute of Limitations:* Defendants argue that the cause of action is barred by the statute of limitations, making the same argument as they did to the first cause of action. The statute of limitations for fraud is three years, and "[t]he cause of action in that case is not deemed to have

accrued until the discovery, by the aggrieved party, of the facts constituting the fraud...” (§ 338, subd. (d).) This cause of action involves representations made in connection with the remediation, which occurred in 2023 and therefore is clearly not barred by the statute of limitations.

*Failure to State a Cause of Action:* “”The elements of fraud...are: (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage.”...” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5<sup>th</sup> 1, 32.) “... Fraud allegations ‘involve a serious attack on character’ and therefore are pleaded with specificity. General and conclusory allegations are insufficient. The particularity requirement demands that a plaintiff plead facts which “”show how, when, where, to whom, and by what means the representations were tendered.”...” (*Cansino v. Bank of America* (2014) 224 Cal.App.4<sup>th</sup> 1462, 1469, citations omitted.)

The allegations show that the representations were made after the remediation was complete and that they were made orally to Stevenson. However, Plaintiffs have not alleged who made the representations. Even if Plaintiffs are correct that West Coast was Defendants’ agent and therefore Defendants are liable for West Coast’s deceit, they still must be specific as to who made the representations. In any event, Plaintiffs have not alleged that West Coast was Defendants’ agent. They allege only that Defendants “hired” West Coast. (¶3.)

As explained in *Hearden v. Windsor Redding Care Center, LLC* (2024) 103 Cal.App.5<sup>th</sup> 1010, 1020:

An agent is one who represents another, called the principal, in dealings with third persons.” In California, an agency is “either actual or ostensible.” Actual agency arises when the principal’s conduct causes the agent reasonably to believe that the principal consents to the agent’s act on behalf of the principal. Ostensible agency arises when the principal’s conduct causes the third party reasonably to believe the agent has the authority to act on the principal’s behalf.

An agency, whether actual or ostensible, cannot be created by the conduct of the agent alone; rather, conduct by the principal is essential to create the agency.’ “”The principal must in some manner indicate that the agent is to act for the principal, and the agent must act or agree to act on the principal’s behalf and subject to the principal’s control.”...” Thus, the ‘formation of an agency relationship is a bilateral matter. Words or conduct by both principal and agent are necessary to create the relationship...

(Citations omitted.) This case involves a roofing contractor and a mold remediation company. Plaintiffs point to no words or conduct by Defendants and West Coast which would have led Stevenson to believe West Coast was acting on behalf of Defendants. They also allege no fact to show that West Coast was subject to Defendants’ control. Rather, the allegations indicate that West Coast was an independent contractor. “”An ‘independent contractor’ is generally defined as a person who is employed by another to perform work; who pursues an ‘independent employment or occupation’ in performing it; and who follows the employer’s ‘desires only as to the results of the work, and not as to the means whereby it is accomplished.’ The most significant factor in determining the existence of an employer-independent contractor relationship is the right to control the manner and means by which the work is to be performed.

‘If control may be exercised only as to the result of the work and not the means by which it is accomplished, an independent contractor relationship is established.’” (Wilson v. County of San Diego (2001) 91 Cal.App.4<sup>th</sup> 974, 983-984, citations omitted.)

“Case law has identified secondary indicia of the nature of the relationship. These are ‘(a) whether the one performing services is engaged in a distinct occupation or business; (b) the kind of occupation, with reference to whether, in the locality, the work is usually done under the direction of the principal or by a specialist without supervision; (c) the skill required in the particular occupation; (d) whether the principal or the worker supplies the instrumentalities, tools, and the place of work for the person doing the work; (e) the length of time for which the services are to be performed; (f) the method of payment, whether by the time or by the job; (g) whether or not the work is a part of the regular business of the principal; and (h) whether or not the parties believe they are creating the relationship of employer-employee.’” (Varisco v. Gateway Science & Engineering, Inc. (2008) 166 Cal.App.4<sup>th</sup> 1099, 1103-1104, citation omitted.)

As already noted, Plaintiffs allege no facts to show that Defendants had the right to control the manner and means by which West Coast performed the mold remediation, and the secondary indicia suggest West Coast was an independent contractor. An employer is not vicariously liable for an independent contractor’s conduct. (Garcia v. W&W Community Development, Inc. (2010) 186 Cal.App.4<sup>th</sup> 1038, 1049.)

It would be difficult for Plaintiffs to plead facts sufficient to state a cause of action against Defendants based on vicarious liability. While “[g]enerally, an allegation of agency is an allegation of ultimate fact and is, of itself, sufficient to avoid a demurrer,” there is an exception “where the specific allegations of a complaint overcome the general allegation of agency by showing that no such relationship existed.” (Garton v. Title Ins. & Trust Co. (1980) 106 Cal.App.3d 365, 376.)

The court will give Plaintiffs an opportunity to plead around the specific allegations which indicate no agency relationship existed or to plead fraudulent misrepresentations on the part of Defendants. Sustained with leave to amend.

### **Motion to Strike**

Defendants move to strike paragraph 35 of the misrepresentation cause of action and the associated prayer for punitive damages. Since the Court is sustaining the demurrer to that cause of action, the motion to strike is moot.

*Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of*

*the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.*

*IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.*

*FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).*

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 08/28/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0004949

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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|                                                           |  |
|-----------------------------------------------------------|--|
| <p>PLAINTIFF:      BELVEDERE LAGOON<br/>LLC</p>           |  |
| <p>vs.</p>                                                |  |
| <p>DEFENDANT:    HACHMAN<br/>CONSTRUCTION INC., ET AL</p> |  |

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NATURE OF PROCEEDINGS: MOTION – LEAVE

**RULING**

On July 30, 2026, the court entered summary adjudication on Defendants Hachman Construction, Inc. (“HCI”) and Timothy Hachman’s (“Hachman”; together with HCI, “Defendants”) motion for summary adjudication of Plaintiff Belvedere Lagoon, LLC’s (“Plaintiff”) as to the Fifth Cause of Action in the Complaint. In that order, the court carefully noted that that ruling did not bear on Plaintiff’s ability to amend to complaint to assert a cause of action by John and Charlotte Doyle, individually.

A rereading of that order explains that this lawsuit was filed in the name of Plaintiff Belvedere Lagoon LLC only. Plaintiff Belvedere Lagoon LLC consist of Jon and Charlotte Doyle (“the Doyles”) and members of the LLC. They created Plaintiff to hold title to 54 Peninsula Boulevard, the property at the center of this litigation. The Doyles arranged for Defendants to perform the remodel. Using the LLC as a shield, they are not plaintiffs in this case.

It is undisputed that all of the money paid to Defendant HCI in connection with the project at 54 Peninsula Boulevard (\$1,582,896.38 in total) was paid from bank accounts that were in the name of John and Charlotte Doyle or their trust, not in the name of Plaintiff, the couple’s LLC. “A limited liability company is an entity distinct from its members.” (Corp. Code, § 17701.04, subd. (a).) Money held in an account in the name of the Doyles or their trust necessarily belongs to the Doyles or to their trust and not to Plaintiff, a separate legal entity. Plaintiff did not pay any funds to HCI.

Plaintiff necessarily cannot prevail on a cause of action under Section 7031(b) because the section enables “a person who utilizes the services of an unlicensed contractor” to “bring an action . . . to recover all compensation paid to the unlicensed contractor for performance of any act or contract.” (Bus. & Prof. Code, § 7031, subd. (b).) The most natural reading of this

language is that Section 7031(b) **enables a person who paid an unlicensed contractor for his services to claw back the money paid, and a person who did not give an unlicensed contractor any money cannot reap any benefit from the same statute.** (See *Eisenberg Village etc. v. Suffolk Construction Co., Inc.* (2020) 53 Cal.App.5th 1201, 1211; [Section 7031(a) “precludes an unlicensed contractor (but not the other party to the contract) from enforcing the contract[,]” and if the other party to the contract brings a timely action under Section 7031(b), that provision “requires the unlicensed contractor to *return all compensation received from that party*”] [emphasis added].) Here, the Plaintiff LLC did not make the payments, and therefore cannot claw back funds, which is why the Doyles wish to enter the lawsuit by an Amended Complaint.

“We hold that the one-year statute of limitations applies to claims for disgorgement under section 7031(b). We also hold that the discovery rule does not apply, and that a section 7031(b) claim accrues upon the completion or cessation of the performance of the act or contract at issue.” (*Eisenberg Village etc. v. Suffolk Construction Co., Inc.* (2020) 53 Cal.App.5th 1201, 1203; accord, *SF CDC, LLC v. Webcor Construction, LLC* (2021) 62 Cal.App.5th 266 at 277-281.

Eisenberg rejected a parties ability to seek cover under the “delayed discovery” rule at 1214-1215:

To avoid such absurd results, and because there is no reason in equity to apply it, we hold that the discovery rule does not apply to section 7031(b) claims. ...In the case of a section 7031(b) claim, the cause of action is complete when an unlicensed contractor completes or ceases performance of the act or contract at issue.

Checks were written by the Doyles to HCI invoices totaling \$1,586,066.78 from their own bank account, not their LLC’s bank account. The Doyles did not make a mistake; they specifically intended to create an LLC to deal with the construction, while at the same time were the actual payors to HCI. They did not make a mistake which would qualify them as being a misnamed or mistaken Plaintiff. Their position with the LLC was open and notorious by their independent check writing. They intentionally attempted to limit their personal liability by using the LLC to manage the construction. The problem here was created by the LLC in an effort to protect the Doyles from liability. (See, *Bartalo v. Superior Court* (1975) 51 Cal.App.3d 526.)

Substituting the Doyles does not cure a technical pleading defect. Rather, adding new plaintiffs allows them to assert independent statutory rights after the statutory limitations period applicable to that right has expired. In cases where the wrong LLP party was plead, a partner or entity may not join after the Statute of Limitations has expired, standing in the same shoes as the misidentified entity, particularly when the sole reason for the party to come to the litigation at the late hour was to cure an obvious pleading defect. (See, *Engel v. Pech* (2023) 95 Cal.App.5th 1227, 1231.)

Most requests for leave to amend a complaint are routinely granted, in an effort by the court to move the case along when there is a finding of no prejudice to the Defendant. In this case however, the weight of California authority stands in the way of Plaintiff’s request. The request for leave to amend is the complaint is DENIED.

*Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.*

*IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.*

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**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 08/28/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0007369

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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PLAINTIFF:      HAYDEN WILLIAMS

vs.

DEFENDANT:    EMANUEL KOPSTEIN, ET  
AL

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NATURE OF PROCEEDINGS: MOTION – SUMMARY ADJUDICATION

**RULING**

Defendant Emanuel Kopstein’s motion for summary adjudication is denied. Defendant Cary Kopstein’s motion for summary judgment is granted. Plaintiff’s request for a continuance under Code of Civil Procedure Section 437c(h) is denied.

**Allegations in the Amended Complaint**

Plaintiff Jayden Williams alleges that on September 30, 2024, he was injured by a vehicle that was owned, maintained, insured, and/or controlled by Emanuel Kopstein (“Emanuel”). Emanuel entrusted the vehicle to Defendant Dejaivonnee Le Na Shonnee D Benard (“Benard”) and/or permitted its use by another.

Plaintiff names Emanuel individually and as Trustee of the CZM Family Trust, Benard, and Cary Kopstein (“Cary”), as defendants, and asserts a single cause of action for motor vehicle negligence.

**Standard**

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal. App. 4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 437c(p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc. § 437c(p)(2).) “A triable issue of material fact exists if the evidence reasonably permits a trier of fact to find the contested fact in favor of the plaintiff in accordance with the applicable standard of proof.” (*Bakos v. Roach* (2025) 108 Cal.App.5th 390, 395.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467; Code Civ. Proc. § 437c(c).) The moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.) Any evidentiary doubts are resolved in favor of the opposing party. (*City of Santa Cruz v. Pacific Gas & Elec. Co.* (2000) 82 Cal.App.4th 1167, 1176.)

### **Evidentiary Objections**

The Court does not rule on Plaintiff’s evidentiary objections as the evidence to which Plaintiff objects has no bearing on the Court’s ruling. (Code Civ. Proc. § 437c(q).)

### **The Kopstein Defendants**

Emanuel Kopstein moves for summary adjudication as to (1) Plaintiff’s allegations of negligent entrustment; and (2) the limitation of liability under California Vehicle Code Section 17151. Cary Kopstein moves for summary judgment on the ground that there is no evidence she owned, controlled, entrusted, maintained, or operated the vehicle, or otherwise engaged in any conduct giving rise to liability in this action.

### **Emanuel’s Motion**

#### **Limitation of Liability**

Emanuel’s motion for summary adjudication “that, absent any independent basis for liability, any potential liability against Emanuel Kopstein as the registered owner of the subject vehicle is limited pursuant to California Vehicle Code section 17151” is denied. (See Notice of Motion and Motion, p. 1:12-14.) The applicability of a statutory cap on a defendant’s potential liability is not a proper subject for a motion for summary adjudication. (See Code Civ. Proc. § 437c(f)(1).)

Defendants argue in their Reply that the motion is proper because they plead Section 17151 as an affirmative defense in their Answer, and a motion for summary adjudication can appropriately challenge an affirmative defense. Defendants submit a copy of their Answer with their Reply, attached as an exhibit to their counsel's declaration. Defendants did not make this argument anywhere in the moving papers. Defendants do not reference the fact that they asserted this section as an affirmative defense in their opening memorandum or in their Separate Statement. (See *California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1297-1298 [all material facts must be in separate statement].) This is not an argument made in response to arguments raised in Plaintiff's Opposition and there is no reason Defendants could not have made this argument earlier.

The Court does not and cannot consider this new argument as Plaintiff has not been given a meaningful opportunity to respond. (See *Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 227-228; *Regency Outdoor Advertising, Inc. v. Carolina Lanes, Inc.* (1995) 31 Cal.App.4th 1323, 1333.)

### **Negligent Entrustment**

Emanuel's motion for summary adjudication as to Plaintiff's negligent entrustment theory is also denied. This argument consists of one of three theories (entrustment, permissive use, employment/agency) that Plaintiff asserts in connection with his single cause of action for motor vehicle negligence. (See Amended Complaint, MV-2(c)-(f).)

A party may move for summary adjudication of a cause of action relating to separate and distinct wrongful acts even though the complaint combines it with other wrongful acts in a single pleaded cause of action. (See *Blue Mountain Enterprises, LLC v. Owen* (2022) 74 Cal.App.5th 537, 549; *Lilienthal & Fowler v. Superior Court* (1993) 12 Cal.App.4th 1848, 855.) This rule does not apply here, as Plaintiff's negligence theories arise from the same operative facts (Emanuel's transfer of possession of the vehicle to Lambert, who then allowed it to be used by Benard) and are sub-theories under the Judicial Council form for a motor vehicle negligence cause of action. There are no "separate and distinct" wrongful acts alleged.<sup>1</sup>

Because Emanuel's motion would not completely dispose of Plaintiff's motor vehicle negligence cause of action, the motion is denied. (See Code Civ. Proc. § 437c(f)(1).)

### **Cary's Motion**

Cary argues that the evidentiary record shows she had no ownership interest in the vehicle, was not a party to the agreement between Emanuel and Lambert, and did not possess, control, maintain or operate the vehicle. (Defendants' Undisputed Material Facts ("UMF") 15-17.) She also did not give permission to any person to operate the vehicle and was not present at the time of the incident. (UMF 18, 19.) As a result, she could not entrust or permit another to use the vehicle or engage in any conduct that could subject her to liability.

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<sup>1</sup> Defendants do not cite to either *Blue Mountain* or *Lilienthal*, both First District Court of Appeal decisions, in their papers. Instead, they cite to *Jen-Weld, Inc. v. Superior Court* (2005) 131 Cal.App.4th 853, in which the court did not discuss or even address the "separate and distinct" wrongful act analysis addressed in *Blue Mountain* and *Lilienthal*. The facts in *Jen-Weld* are also distinguishable from this case.

Plaintiff argues that Cary is identified as an “additional contact” on the agreement between Emanuel and Lambert, Lambert’s payments for the vehicle were directed to a Zelle account enrolled in Cary’s name, Emanuel’s texts state that Cary paid outstanding tolls, Defendants’ discovery responses identify Cary as a person with knowledge of the vehicle’s ownership, possession and use, Cary communicated with Lambert about the vehicle, and Cary was a named insured on the vehicle’s policy.

The facts presented by Plaintiff are insufficient to avoid summary judgment.

There is no evidence that Cary was an owner of the vehicle. Vehicle Code Section 17150, on which Plaintiff’s permissive use theory is based, applies by its terms only to an “owner of a motor vehicle”. Ownership is also an element of a negligent entrustment theory. (See *Tavares v. Zipcar, Inc.* (2026) 118 Cal.App.5<sup>th</sup> 219, 230 [“to hold a defendant liable for negligent entrustment, the plaintiff must prove that . . . the defendant was an owner of the vehicle operated by the driver . . . .”].) There is also no evidence that Cary employed Benard or Lambert or that they were an agent or employee acting within the scope of their agency for purposes of Plaintiff’s employment/agency theory under MV-2(b) or (e).

Plaintiff requests that he be allowed to conduct discovery under Section 437c(h) to show that the vehicle was community property, thereby making Cary an owner. However, a spouse who may own an interest in a vehicle based solely on a community property basis cannot be held liable for the other spouse’s negligence under Vehicle Code Section 17150, where the vehicle was registered in the name of the other spouse only. (*Shepardson v. McLellan* (1963) 59 Cal.2d 83, 87; *Hooper v. Romero* (1968) 262 Cal.App.2d 574, 578.)

Here, it is undisputed that the vehicle was registered to Emanuel only. (See Plaintiff’s Response to UMF 15 [“Undisputed that Cary Kopstein is not the registered owner”].) Cary therefore cannot be held liable for Emanuel’s alleged negligence under Section 17150 regardless of whether the vehicle was community property. Thus, the summary adjudication is granted.

Plaintiff’s request for a continuance to conduct this discovery is therefore denied. Plaintiff does not satisfy the requirements of Section 437c(h) in any event, as the declaration of Plaintiff’s counsel does not adequately address Plaintiff’s inability to obtain the discovery as to Cary earlier, or Plaintiff’s diligence to obtain such discovery. (See Declaration of Daniel Aguilar, ¶11; see also *Braganza v. Albertson’s LLC* (2021) 67 Cal.App.5<sup>th</sup> 144, 160.)

*Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.*

*IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.*

*FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).*

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 08/28/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0008098

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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|                                   |  |
|-----------------------------------|--|
| PLAINTIFF:      MELODIE MICHELSON |  |
| vs.                               |  |
| DEFENDANT:    MIA MORRIS, ET AL   |  |

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NATURE OF PROCEEDINGS: MOTION – RELIEVE COUNSEL

**RULING**

Counsel Daniel Raff filed a Motion to be relived as counsel on July 6, 2026, citing a breakdown in communications with his client, Defendant Jared Morris.

Defendant has not filed a response, nor was an opposition to the motion been filed by the Plaintiff. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.) The motion to be relieved as counsel is hereby GRANTED.

*Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.*

*IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.*

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**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 08/28/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0008259

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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PLAINTIFF:      ATHER IMRAN

vs.

DEFENDANT:    AMERICAN HONDA  
MOTOT CO., INC.

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NATURE OF PROCEEDINGS: 1) MOTION – COMPEL ANSWERS TO  
INTERROGATORIES – DISCOVERY FACILITATOR PROGRAM  
2) MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM  
3) MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM  
4) MOTION – COMPEL ANSWERS TO INTERROGATORIES – DISCOVERY  
FACILITATOR PROGRAM

**RULING**

On Calendar of Defendant’s motions to compel answers, admissions, and answers to interrogatories.

Pursuant to Marin County Rule, Civil 2.13B, on July 13, 2026, Robert James Begley, Esq. was appointed to preside as Discovery Facilitator to assist with the motions. The Court has not received a Declaration of Non-Resolution from either party, in particular *the moving party*, within five court days prior to the hearing on the motion, as required by MCR Civ 2.13H.

The Court reminds the parties that compliance with MCR Civ 2.13H not only includes the timely filing of the Declaration of Non-Resolution by each party five court days prior to the hearing but also requires that “[t]he Declaration shall not exceed three pages and ***shall briefly summarize the remaining disputed issues and each party’s contentions.***” (MCR Civ 2.13H(1), emphasis added.)

The court received a declaration from Michael Thomas, Esq, on behalf of the Plaintiff advising that Plaintiff had complied with the discovery by serving supplemental responses. No other information was provided by the Defendant.

The Court concludes that this discovery matter has been or is being resolved by the facilitator. The motion is therefore ordered **OFF CALENDAR**. (MCR Civ 2.13H(2).) Should the parties fail to reach resolution through the facilitator, either party may request (by ex parte application) that the Court re-set the motion for an expedited hearing.

*Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.*

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**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 08/28/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0009726

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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PLAINTIFF:      SUZANNE CREEKMORE

vs.

DEFENDANT:    TOWN OF TIBURON, ET  
AL

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NATURE OF PROCEEDINGS: 1) DEMURRER  
2) DEMURRER

RULING

**I. Background**

Plaintiff Suzanne Creekmore (“Plaintiff”) brings this action against the Town of Tiburon (“Tiburon”) and Muchmore Than Consulting LLC (“MTC”) alleging numerous violations of the California Fair Employment and Housing Act (“FEHA”) during her employment and in her termination. Plaintiff alleges that Tiburon and MTC were joint employers of Plaintiff, with Tiburon being Plaintiff’s direct or general employer and MTC being Plaintiff’s indirect or special employer. (Complaint ¶8.)

Plaintiff’s complaint includes 12 causes of action, all of which are directed at Tiburon. MTC is named in eight of the causes of action.

At present, both Tiburon and MTC demur to all of the causes of action directed against them.

**II. Legal Standard**

“... A general demurrer will lie where the complaint “has included allegations that *clearly* disclose some defense or bar to recovery.” A demurrer can be used only to challenge defects that appear on the face of the complaint or from matters outside the pleading that are judicially noticeable. ‘To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action.’ The demurrer admits the truth of all material facts properly pleaded, including all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law.” (*Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.* (2024) 102 Cal.App.5<sup>th</sup> 281, 288-289, citations omitted.)

“... “[D]emurrers for uncertainty are disfavored and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.”” (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5<sup>th</sup> 279, 292, citation omitted.)

### III. Tiburon’s Demurrer

Tiburon’s demurrer is sustained as to the fifth and ninth causes of action only, with leave to amend.

#### 1. First Cause of Action – Discrimination

1) Failure to State Sufficient Facts: “... To state a prima facie case of discrimination under FEHA, the plaintiff must show (1) she was a member of a protected class; (2) she was qualified for the position she sought or was performing competently in the position she held; (3) she suffered an adverse employment action; and (4) some other circumstance suggests discriminatory motive. The ‘plaintiff must establish a causal nexus between the adverse employment action and her protected characteristic.’” (*Wawrzewski v. United Airlines, Inc.* (2024) 106 Cal.App.5<sup>th</sup> 663, 684-685, citations omitted.)

Tiburon argues that the cause of action is deficient because Plaintiff “fails to state any facts whatsoever to show a causal relationship between her sex, gender, age, marital status, reproductive health decision making, disability, and medical condition, and any purported adverse employment action (i.e., Tiburon’s filing of a disability retirement application on her behalf and subsequent separation from employment).” Without needing to address the other adverse employment actions Plaintiff contends she alleges, the Court finds that her allegations regarding her separation of employment are sufficient.

Plaintiff alleges that Ms. Muchmore (“Muchmore”) told her, after advising her Tiburon had decided to separate Plaintiff from her employment, that Muchmore did not believe Plaintiff could do the work of a director as a single mother. (¶52.) This establishes a causal connection between a protected status and an adverse employment action. Even if Plaintiff has not established a causal connection as to each of the alleged bases of discrimination, this does not require sustaining the demurrer. “...[A] demurrer cannot rightfully be sustained to part of a cause of action or to a particular type of damage or remedy. ...” (*Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4<sup>th</sup> 1028, 1047; see also *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4<sup>th</sup> 1680, 1682 [“... A demurrer does not lie to a portion of a cause of action. ...”].)

2) Uncertainty: Tiburon argues that the cause of action is uncertain because it improperly combines seven separate causes of action into a single claim. Even if Plaintiff technically has seven separate causes of action, her combining them into one does make the cause of action “so incomprehensible that [Tiburon] cannot reasonably respond.” (*Morris, supra*, 78 Cal.App.5<sup>th</sup> at 292.) Tiburon can admit or deny Plaintiff’s allegations. Overruled.

#### 2. Second Cause of Action – Harassment

1) Failure to State Sufficient Facts: In *Martin v. Board of Trustees of California State University* (2023) 97 Cal.App.5<sup>th</sup> 149, 170, the Court wrote:

To establish a prima facie case of unlawful harassment under FEHA, a plaintiff must show “(1) he was a member of a protected class; (2) he was subjected to unwelcome...harassment; (3) the harassment was based on the plaintiff’s membership in an enumerated class; (4) the harassment unreasonably interfered with his work performance by creating an intimidating, hostile, or offensive work environment; and (5) [defendant] is liable for the harassment. [Defendant] is liable only “if the entity, or its agents or supervisors, knows or should have known of this conduct and fails to take immediate and appropriate corrective action.”

A showing that harassment created a hostile work environment requires a showing “that the defendant’s conduct would have interfered with a reasonable employee’s work performance and would have seriously affected the psychological well-being of a reasonable employee.” “The law prohibiting harassment is violated ‘when the workplace is permeated with discriminatory intimidation, ridicule and insult that is “sufficiently severe or pervasive to alter the conditions of the victim’s employment and create an abusive working environment.’

(Citations and brackets omitted.)

Tiburon argues that the cause of action is deficient because Plaintiff “only pleads three stray remarks, with no dates identified, that are grossly insufficient to support a harassment claim[.]” Contrary to Tiburon’s argument, Plaintiff pleads more than “three stray remarks.” She alleges that prior to her maternity leave: Troy Bassett (“Bassett”) called a pregnant woman’s stomach a “horrible belly” and referenced physical changes that accompany pregnant in a disgusted manner in both private conversations and publicly during department meetings.

Bassett began acting hostile towards Plaintiff and falsely accused her of failing to fulfill her responsibilities. She told Plaintiff and others that she was “pissed” about the maternity leave because it would impact Bassett. (¶20.) When Plaintiff explained that she had temporarily reassigned some of her duties in order to ensure smooth operation of the department, Bassett accused Plaintiff of doing “nothing all day” in her job and told Plaintiff that taking maternity leave would make it clear she was not needed at work. (¶21.)

Dina Tasini (“Tasini”) told Plaintiff no man would want to touch her once she is a single mom. When Plaintiff gained weight, Tasini started mocking her appearance, saying in front of colleagues “Look at you! You have a pregnant belly, and a pregnant ass!” Tasini repeatedly told Plaintiff to get a different job because she would not be able to perform her duties as Director once her baby was born. (¶22.)

Bassett and Tasini worked to undermine Plaintiff with Greg Chanis (“Chanis”), asserting that Plaintiff would not be able to return to work after only 12 weeks, questioning her ability to work as Director once she was a new mother, and criticizing how Plaintiff ran the department. (¶23.) Three weeks before Plaintiff returned from leave, Bassett sent a memo to Chanis, which he forwarded to Plaintiff, in which she criticized Plaintiff for her management and for having “minimal ‘availability and attention’ due, in part, to her pregnancy and maternity leave.” (¶31.)

After Plaintiff returned from leave, Bassett ignored Plaintiff, shook her head disgustedly when Plaintiff tried to engage with her, criticized Plaintiff in front of her peers, and accused Plaintiff of failing to perform her duties. (§33.) Evaluating the “totality of the circumstances” (see *Bailey v. San Francisco Dist. Attorney’s Office* (2024) 16 Cal.5<sup>th</sup> 611, 628), the Court finds that a reasonable trier of fact could find that Plaintiff was subjected to a hostile work environment.

With respect to the alleged criticism of Plaintiff’s work, Tiburon argues that such allegations cannot support the cause of action because they relate to her work performance. Tiburon cites *Jumaane v. City of Los Angeles* (2015) 241 Cal.App.4<sup>th</sup> 1390. The argument lacks merit in that neither Bassett nor Tasini were engaged in personnel management. They were not Plaintiff’s supervisor or in a position to take “commonly necessary personnel management actions” as to Plaintiff.

The matters outlined above are at least connected to Plaintiff’s pregnancy and maternity leave. Even if there is no clear connection to other protected categories, a demurrer does not lie to part of a cause of action.

2) Uncertainty: Tiburon raises the same argument as it did in connection with the first cause of action. For the same reason, the argument fails. Overruled.

### **3. Third Cause of Action – Failure to Prevent Discrimination and Harassment**

Tiburon argues that this cause of action fails to state sufficient facts because the first and second causes of action fails. The Court has found those causes of action to be sufficient.

### **4. Fourth Cause of Action – Failure to Engage in the Interactive Process**

Tiburon argues that Plaintiff “fails to plead facts to show that Tiburon failed to meet with [her] to engage in an interactive process and fails to state any facts regarding any reasonable accommodations that Tiburon could have provided in the interactive process but were not provided... In fact, [Plaintiff] herself pleads that Tiburon did engage in an interactive process with her and that she was provided leave on multiple occasions.”

The Court finds that Plaintiff’s allegations are sufficient. Plaintiff alleges that her doctor stated in the questionnaire sent to him that Plaintiff would be able to return to work by April 15. (§47.) In January, when Muchmore urged Plaintiff to consider resigning from her position, Plaintiff told Muchmore she believed she would be able to return to her position at the end of her medical leave and suggested an accommodation of temporarily working either part-time in the office or full-time remotely. (§§48-49.) Muchmore refused to discuss the possibility of Plaintiff returning to her position or any accommodation that would allow her to do so. (§40.) On February 12, Muchmore told Plaintiff her bonding leave had expired, and Tiburon had decided to separate Plaintiff from her employment. Muchmore refused to discuss any of the accommodations Plaintiff requested that would have allowed her to return to her position. (§51.) On February 26, Muchmore sent Plaintiff a letter indicating the accommodation process was over. (§55.) Thus, while Plaintiff was initially allowed to take a mental health leave, it was cut short even though both she and her doctor indicated she would be able to return to work by April 15. She requested that she be allowed to return part-time in the office or full-time remotely on a temporary basis.

It cannot be determined from the face of the complaint that Tiburon could not accommodate her leave until April 15 or allow her to return part-time or work remotely on a temporary basis. While Tiburon may have engaged in the interactive process in good faith up to a point, it cannot be determined from the face of the complaint that there was not a later breakdown in that process. "...[T]he fact that an employer took some steps to work with an employee to identify reasonable accommodations does not absolve the employer of liability under [Government Code] section 12940(n).

If the employer is responsible for a later breakdown in the process, it may be held liable." (*Nadaf-Rahrov v. Neiman Marcus Group, Inc.* (2008) 166 Cal.App.4<sup>th</sup> 952, 985, citations omitted.)

Overruled.

### 5. Fifth Cause of Action – Failure to Accommodate Pregnancy

Section 12940, subdivision (m)(1) makes it an unlawful employment practice "[f]or an employer...to fail to make reasonable accommodation for the known physical or mental disability of an...employee. ..." "There are three elements to a failure to accommodate action: '(1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is a qualified individual (i.e., he or she can perform the essential functions of the position); and (3) the employer failed to reasonably accommodate the plaintiff's disability.' ..." (*Hernandez v. Rancho Santiago Community College District* (2018) 22 Cal.App.5<sup>th</sup> 1187, 1193-1194.) The Court agrees with Tiburon that Plaintiff has not alleged facts showing that Tiburon failed to accommodate her pregnancy. Her allegations show that she went on maternity leave on January 25 and returned in May. (¶¶ 30, 33.)

In its opposition, Plaintiff argues:

As detailed in the Complaint, [Plaintiff] was pregnant, gave birth, and suffered a mental health crisis for which she was placed on medical leave by her doctor in September 2023. In December 2024, [Plaintiff] requested accommodations in the form of extended leave through April 15, 2024, and returning to work on either a part-time basis or full-time working from home. ...

(Citation to complaint omitted.) Her mental health disability is not a pregnancy disability.

Section 12945, subdivision (a)(3)(A), makes it an unlawful employment practice "[f]or an employer to refuse to provide reasonable accommodation for an employee for a condition related to pregnancy, childbirth, or a related medical condition, if the employee so requests, with the advice of the employee's health care provider." "[A] cause of action under [that] section...requires proof that: (1) the plaintiff had a condition related to pregnancy, childbirth, or a related medical condition; (2) the plaintiff requested accommodation of this condition, with the advice of her health care provider; (3) the plaintiff's employer refused to provide a reasonable accommodation; and (4) with the reasonable accommodation, the plaintiff could have performed the essential functions of the job. ..." (*Lopez v. La Casa de Las Madres* (2023) 89 Cal.App.5<sup>th</sup> 365, 370-371.) "A 'condition related to pregnancy, childbirth, or a related medical condition,' as

set forth in Government Code section 12945, means a physical or mental condition intrinsic to pregnancy or childbirth that includes, but is not limited to, lactation. ..." (2 C.C.R. § 11035(d).) Plaintiff has offered no facts to show that her mental health disability was "intrinsic to pregnancy or childbirth."

Sustained with leave to amend.

#### **6. Sixth Cause of Action – Failure to Accommodate Disability**

The Court finds that Plaintiff's allegations are sufficient. As discussed in connection with the fourth cause of action, Plaintiff went on leave after suffering a mental health crisis. Plaintiff requested leave through April 15 and both she and her doctor said she would be able to return to work at that point. She suggested that she be able to work part-time in the office or full-time remotely. Tiburon refused.

It cannot be determined from the face of the complaint that Tiburon could not have accommodated her. Overruled.

#### **7. Seventh and Eleventh Cause of Action – Interference With Right to Take Pregnancy Leave and Retaliation for Requesting or Using Maternity Leave**

It is an unlawful employment practice "[f]or an employer to refuse to allow an employee disabled by pregnancy, childbirth, or a related medical condition to take leave for a reasonable period of time not to exceed four months and thereafter return to work..." (§ 12945, subd. (a)(1).) It is also an unlawful employment practice "[f]or an employer to interfere with, restrain, or deny the exercise of, or the attempt to exercise" the right to take the leave set forth in subdivision (a)(1). (§ 12945, subd. (a)(4).) Tiburon argues that Plaintiff fails to state facts showing that Tiburon interfered with her right to leave for a disability related to pregnancy and fails to state facts to show that Tiburon retaliated against Creekmore for requesting or using leave for a disability related to pregnancy."

With respect to interference, Plaintiff first points to her allegation that she delayed the start of her maternity leave by one week. She specifically alleges:

[Plaintiff's] maternity leave was scheduled to begin on January 18, 2023. Despite knowing the emotional and physiological distress she was suffering as a result of the toxic work environment she was being subjected to, Mr. Chanis urged [Plaintiff] to delay her leave. As a result of Mr. Chanis' pressure, [Plaintiff] delayed her maternity leave by one (1) week.

(¶28.) She also points to her allegations that Tiburon, via Chanis, "allow[ed] her to be subjected to ongoing harassment for her planned maternity leave." While the Court fails to see how the alleged harassment "interfered" with her leave, it finds that her allegation regarding delay is marginally sufficient.

Tiburon argues that "Plaintiff's claim that Tiburon 'delayed' her leave for one week is belied that Plaintiff's admission that Tiburon later extended her leave *multiple times*..." Tiburon points to paragraph 44, where Plaintiff alleges that she went on leave after suffering an acute mental

health crisis. This was not an extension of her maternity leave. As for additional maternity leave, Plaintiff alleges that she planned to work three weeks and then take one week off and, rather than agree to the one week, Chanis made Plaintiff attend meetings with a facilitator and Bassett. She also alleges that she requested to take her remaining baby-bonding leave over three intermittent periods, but Chanis initially did not respond and then refused to discuss it. (¶¶ 37, 38, 42, 43.) From these allegations, it cannot be determined from the fact of the complaint that Plaintiff received additional maternity leave.

With respect to retaliation, Plaintiff alleges that Chanis refused to do anything about the harassment by Basset and Tasini, which was based upon her pregnancy and planned leave of absence. She further alleges that Chanis did not approve her annual merit salary increase in March “because she was on maternity leave.” While Plaintiff was still on leave, Chanis approved of Basset’s criticism of Plaintiff for having minimal availability and attention due in part to her pregnancy and maternity leave. And after her return, when Plaintiff asked for her intermittent one week off, Chanis angrily said the “‘honeymoon period better be over soon.’” In reply, Tiburon argues that the denial of the salary increase was not an adverse employment action. Even if it is not, the Court finds that the alleged series of actions is sufficient to show an adverse employment action. In *Light v. Department of Paks & Recreation* (2017) 14 Cal.App.5<sup>th</sup> 75, 92, the Court of Appeal wrote:

“‘A change that is merely contrary to the employee’s interests or not to the employee’s liking is insufficient.’ “‘Workplaces are rarely idyllic retreats, and the fact that an employee is displeased by an employer’s act or omission does not elevate that act or omission to the level of a materially adverse employment action.’” For example, “‘a mere oral or written criticism of an employee...does not meet the definition of an adverse employment action under the FEHA.’” Similarly, “‘mere ostracism in the workplace is insufficient to establish an adverse employment decision. However, “‘workplace harassment, if sufficiently severe or pervasive, may in and of itself constitute an adverse employment action sufficient to satisfy the second prong of the prima facie case for...retaliation cases.’””

When a plaintiff alleges a series of actions that comprise a course of conduct, we need not examine each individually. Instead, we consider the totality of the circumstances to determine whether the plaintiff has suffered an adverse employment action. “There is no requirement that an employer’s retaliatory acts constitute one swift blow, rather than a series of subtle, yet damaging, injuries. Enforcing a requirement that each act separately constitute an adverse employment action would subvert the purpose and intent of the statute.

(Citations and brackets omitted.)

A reasonable trier of fact could find that the totality of circumstances constituted retaliation. Overruled.

## **8. Eighth and Twelfth Causes of Action – Interference With Right to Take Medical Leave and Retaliation for Requesting or Using Medical Leave**

“... A CFRA interference claim ‘consists of the following elements: 1) the employee’s entitlement to CFRA leave rights; and (2) the employer’s interference with or denial of those

rights.” (*Moore v. Regents of University of California* (2016) 248 Cal.App.4<sup>th</sup> 216, 250.) “The elements of a cause of action for retaliation in violation of CFRA are: “(1) the defendant was an employer covered by CFRA; (2) the plaintiff was an employee eligible to take CFRA leave; (3) the plaintiff exercised her right to take leave for a qualifying CFRA purpose; and (4) the plaintiff suffered an adverse employment action, such as termination, fine, or suspension, because of her exercise of her right to CFRA leave.” ...” (*Id.* at 248.) Among other reasons, an employee is entitled to a leave of absence under the CFRA because of the birth of a child (§12945.2, subd. (b)(5)(A)) and “because of an employee’s own serious health condition that makes the employee unable to perform the functions of the position of that employee, except for leave taken for disability on account of pregnancy, childbirth, or related medical conditions.” (§ 12945.2, subd. (b)(5)(C).) “‘Serious health condition’ means an illness, injury..., impairment, or physical or mental condition of the employee...that involves either inpatient care or continuing treatment, including, but not limited to, treatment for substance abuse.” (2 CCR § 11087(v).)

After pointing out that Plaintiff took her maternity leave, Tiburon argues that Plaintiff “has not pleaded facts to show that she was eligible for more CFRA leave, she has not pleaded facts to show that Tiburon interfered with her right to take CFRA leave she was eligible for, she has failed to plead facts to show she had a disability that would make her eligible for more CFRA leave, and failed to state facts to show that Tiburon filed a disability retirement application for [her] because she exercised her right to CFRA leave. ...”

As to the interference cause of action, Plaintiff argues that [a]mong the ways in which [Tiburon] interfered with [Plaintiff’s] right to CFRA leave were refusing her request to take intermittent leave in June 2023 (Compl. ¶ 38), ignoring her request for taking intermittent leave in August 2023 (Compl. ¶ 42, 43) and ignoring her requests for assistance and communications about her medical conditions while she was on disability leave (Compl. ¶ 45, 54).” The first two allegations pointed to by Plaintiff indicate interference with leave related to the birth of her child.

As to the retaliation cause of action, Plaintiff argues that Tiburon “retaliated against [Plaintiff] for requesting or using her CFRA leave by threatening her employment when she requested intermittent leave in June 2023 (Compl. ¶ 37), by forcing her into a hostile third-party meeting at which she continued to be verbally abused and harassed when she requested intermittent leave in June 2023 (¶ 38), and by making the decision to terminate Ms. Creekmore from her employment only one (1) month after Ms. Creekmore requested an extension of her leave (Compl. ¶¶ 47, 51).”

At least as to the third matter, the Court finds Plaintiff’s allegations to be sufficient. Plaintiff was on leave for a mental health crisis and on January 12 she submitted her doctor’s questionnaire indicating that she would be able to return to work on April 15, but Tiburon decided by February 12 that it was going to terminate her. The trier of fact could find that this was retaliation for taking the leave. Overruled.

## **9. Ninth Cause of Action – Retaliation for Opposing Discrimination or Harassment**

“... ‘To establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a “protected activity,” (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the

employer's action.' ..." (*Wawrzewski, supra*, 106 Cal.App.5<sup>th</sup> at 699, brackets omitted.) Tiburon argues that Plaintiff has not pleaded facts showing that Tiburon took any adverse employment action against her for complaining of harassment/discrimination. The Court agrees. Plaintiff points to the same matters she raised in connection with the twelfth cause of action.

The Court finds that the first two matters do not constitute an adverse employment action, either individually or collectively. Chanis mentioned once that Plaintiff was an at-will employee and she some number of "meetings" with a facilitator and Bassett. With respect to her termination, Plaintiff's last complaint about harassment/discrimination was no later than mid-August 2023. (See ¶¶42-43.) Tiburon notified her in February 2024 that it had decided to separate her from employment. There is no apparent connection between the decision and her complaints. While "...[t]he causal link may be established by an inference derived from circumstantial evidence "such as...the proximity in time between the protected action and allegedly retaliatory employment decision"" (*Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590. 615), there is a significant gap between Plaintiff's complaints and the decision to terminate her.

Sustained with leave to amend.

#### **10. Tenth Cause of Action – Retaliation for Requesting an Accommodation**

Tiburon argues that Plaintiff has not pleaded facts showing that Tiburon took any adverse employment against her for requesting an accommodation. Plaintiff alleges that in late January Plaintiff proposed working temporarily either parttime in the office or full-time remotely, Muchmore refused to discuss this possibility, and then told Plaintiff on February 12 that Tiburon had decided to separate her from employment.

A reasonable trier of fact could find that the termination was retaliation for asking for an accommodation. Overruled.

#### **11. Injunctive Relief**

Tiburon argues that Plaintiff has not pleaded facts sufficient to state any claim for injunctive relief. As noted earlier, "a demurrer cannot rightfully be sustained...to a particular type of damage or remedy." (*Kong, supra*, 108 Cal.App.4<sup>th</sup> at 1047.). Overruled.

### **IV. MTC's Demurrer**

MTC's demurrer is sustained with leave to amend on the ground that Plaintiff fails to allege facts sufficient to show that MTC was her employer. Even if Plaintiff had alleged sufficient facts showing that MTC was her employer, the Court finds that the eighth, ninth, and eleventh causes of action are not adequately pled.

#### **A. MTC Not Plaintiff's Employer**

Plaintiff argues that MTC was Plaintiff's employer under section 12926, subdivision (d), and was Plaintiff's "joint" or "dual" employer.

1) Section 12926: Subdivision (d) of this section provides that “[e]mployer” includes any person regularly employing five or more persons, or any person acting as an agent of an employer, directly or indirectly...” In *McCoy v. Pacific Maritime Assn.* (2013) 216 Cal.App.4<sup>th</sup> 283, 301-302, the Court explained:

... An assessment of whether such an employment relationship exists requires a consideration of the totality of the circumstances. Factors to be considered are the payment of salary or other benefits, the ownership of the equipment used by the employee, the location where the relevant work is performed, the responsibility of the employer to train the employee, the authority to promote or discharge the employee, and the power to determine the schedule, assignment, and amount of compensation earned by the employee. Although there is “no magic formula” and no one dispositive factor, the most important consideration is the right of the employer “to control the means and manner of the workers’ performance.” That control must be significant to hold the alleged employer responsible, especially when the conduct underlying the claim was committed indirectly, by an immediate employer other than the defendant.

(Citations omitted.)

Plaintiff alleges that MTC was hired “to provide management and oversight of Defendant TIBURON’s human resources functions. As part of the agreement, Defendant MTC was given decision-making authority over Defendant TIBURON’s personnel matters, including employee requests for accommodation, disability determinations, medical and other types of employee leave, personnel development, and employment termination.” (§29.) Plaintiff argues in her opposition:

...[W]hile acting on behalf of Tiburon, MTC’s principal ignored communications from [Plaintiff] about her medical leave..., interfered with [Plaintiff’s] ability to receive employment benefits..., determined whether or not to grant [Plaintiff’s] request for leave..., established the terms of Tiburon’s interactive process with [Plaintiff]..., engaged in a farcical interactive process with [Plaintiff] on behalf of Tiburon..., improperly abandoned the interactive process on behalf of Tiburon..., and informed [Plaintiff] that Tiburon “needed to move on” from its employment of [Plaintiff]...

In looking at the factors set forth in *McCoy*, the only one which Plaintiff has arguably alleged is that MTC had the authority to terminate Plaintiff. There are no allegations that MTC paid Plaintiff’s salary or benefits, was responsible for training Plaintiff, had the power to determine Plaintiff’s schedule, assignment and compensation, and, most importantly, had the right to control the means and manner of Plaintiff’s performance.

As to Plaintiff’s claim that MTC determined whether or not to grant her request for leave, the allegations simply show that Muchmore requested more information from Plaintiff’s doctor than just a note. This, along with the other things Plaintiff points to (i.e., establishing the terms of Tiburon’s interactive process and engaging in it) are normal HR matters. In fact, Plaintiff’s own argument shows that it was Tiburon’s process. As for Plaintiff’s termination, even if MTC and not Tiburon, made the decision to separate Plaintiff from her employment, this one matter alone is not sufficient to find that MTC was Plaintiff’s employer.

2) “Dual” or “Joint” Employer: “‘If one employer (the general employer) sends an employee to work for another party (the special employer) and both have the right to control the employee’s activities, a dual employment exists’ ...” (*Travelers Property Casualty Co. of America v. Workers’ Comp. Appeals Bd.* (2019) 40 Cal.App.5<sup>th</sup> 728, 731, fn. 1.) “The key to the existence of a special employment relationship is control. ‘Where the servants of two employers are jointly engaged in a project of mutual interest, each employee ordinarily remains the servant of his own master and does not thereby become the special employee of the other.’ It is only where some measure of control over the employee is relinquished by the employee’s general employer to another entity that the other entity may become the employee’s special employer. ‘In determining whether a special employment relationship exists, the primary consideration is whether the special employer has the right to control and direct the activities of the alleged employee or the manner and method in which the work is performed, whether exercised or not...’” (*Brassinga v. City of Mountain View* (1998) 66 Cal.App.4<sup>th</sup> 195, 215-216, citation and brackets omitted.) In *Vernon v. State of California* (2004) 116 Cal.App.4<sup>th</sup> 114, the Court of Appeal addressed the joint employer issue in the context of the FEHA definition of “employer.” It wrote at pages 124-126:

... The common and prevailing principle espoused in all of these tests directs us to consider the “totality of circumstances” that reflect upon the nature of the work relationship of the parties, with emphasis upon the extent to which the defendant controls the plaintiff’s performance of employment duties. “There is no magic formula for determining whether an organization is a joint employer. Rather, the court must analyze ‘myriad facts surrounding the employment relationship in question. ‘ No one factor is decisive.” “The precise contours of an employment relationship can only be established by a careful factual inquiry.”

Factors to be taken into account in assessing the relationship of the parties include payment of salary or other employment benefits and Social Security taxes, the ownership of the equipment necessary to performance of the job, the location where the work is performed, the obligation of the defendant to train the employee, the authority of the defendant to hire, transfer, promote, discipline or discharge the employee, the authority to establish work schedules and assignments, the defendant’s discretion to determine the amount of compensation earned by the employee, the skill required of the work performed and the extent to which it is done under the direction of a supervisor, whether the work is part of the defendant’s regular business operations, the skill required in the particular occupation, the duration of the relationship of the parties, and the duration of the plaintiff’s employment. “‘Generally, ...the individual factors cannot be applied mechanically as separate tests; they are intertwined, and their weight depends often on particular combination.’”

“Of these factors, the extent of the defendant’s right to control the means and manner of the workers’ performance is the most important. ...

(Citations and brackets omitted.)

As already discussed, Plaintiff alleges no facts to show that MTC had any right to control the means and manner of her work. In looking at the additional factors set forth in *Vernon*, Plaintiff’s work is not part of MTC’s regular business operations.

Again, the only one factor which could support Plaintiff's position is the allegation that MTC had the power to terminate her. This one matter alone is not sufficient. Sustained with leave to amend.

**B. Uncertainty**

MTC argues that all the causes of action are uncertain because each is asserted collectively against Defendants. MTC also raises the same uncertainty argument as to the first cause of action as did Tiburon. The complaint is not so incomprehensible that MTC cannot reasonably respond.

**C. First Cause of Action - Discrimination**

The Court concluded in connection with Tiburon's demurrer that Plaintiff states facts sufficient to constitute a cause of action. If Plaintiff can ultimately plead that MTC was her employer and had authority to terminate her, the cause of action will be sufficient as against MTC (although Plaintiff alleges that Muchmore told her that Tiburon determined to separate her from employment and that Tiburon submitted the disability retirement application).

**D. Fourth and Sixth Causes of Action – Failure to Engage in Interactive Process and Failure to Accommodate Disability**

MTC raises the same argument as did Tiburon. The Court has determined that Plaintiff has stated sufficient facts (assuming she can plead that MTC was her employer).

**E. Eighth Cause of Action – Interference With Right to Take Medical Leave**

Although the Court found that the cause of action is sufficiently stated against Tiburon, such finding was based upon allegations that do not involve MTC. Plaintiff points to her allegations that, while on mental health leave, Muchmore "ignored communications from [Plaintiff] about her leave[ and] interfered with [Plaintiff's] ability to receive benefits..." (§45.) The Court finds that these allegations lack sufficient specificity to show how this conduct interfered with Plaintiff's right to take leave.

**F. Ninth Cause of Action – Retaliation for Opposing Discrimination and Harassment**

Plaintiff fails to allege facts sufficient to constitute a cause of action as shown in connection with Tiburon's demurrer.

**G. Tenth and Twelfth Causes of Action – Retaliation for Requesting an Accommodation and for Requesting or Using Medical Leave**

In connection with the demurrer of Tiburon, the Court found that Plaintiff has alleged sufficient facts, and the finding was based upon the conduct of Muchmore. Therefore the causes of action will be sufficient against MTC if Plaintiff is able to amend to allege that MTC was her employer.

## H. Eleventh Cause of Action – Retaliating for Requesting or Using Pregnancy Leave

The Court’s finding that Plaintiff stated facts sufficient to constitute a cause of action against Tiburon was based upon Tiburon’s alleged conduct. Plaintiff argues that the cause of action is sufficient against MTC (assuming it was her employer) because, after she requested and used pregnancy leave, “MTC ignor[ed] her requests for assistance with her medical leave and benefits..., den[ied] her requests for reasonable accommodation..., [refus[ed] to engage in a good-faith interactive process..., and terminat[ed] [Plaintiff] through forced retirement...” The allegation that MTC ignored Plaintiff’s request for assistance with her leave and benefits is not sufficiently specific to show that this, either alone or in combination with the other alleged conduct, constituted an adverse employment action. As to the other conduct, Plaintiff’s allegations show that she returned from maternity leave in May 2023. (¶33.)

The remaining conduct apparently did not occur until early 2024, and MTC told Plaintiff about the decision to separate her on February 12, 2024. Again, while “...’[t]he causal link may be established by an inference derived from circumstantial evidence “such as...the proximity in time between the protected action and allegedly retaliatory employment decision”” (*Fisher, supra*, 214 Cal.App.3d at 615), this case involves a significant gap in time between Plaintiff’s maternity leave and the conduct of MTC.

*Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.*

*IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.*

*FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party’s absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).*